THE APPEAL

'We've Got One In The Sweep'

Three Bronx friends recount their 2012 arrests in the NYPD's 'Operation Crew Cut,' along with their experiences with the court system and incarceration, and reflect on their lives seven years later.

Jarrell Daniels with his mother, Yolanda Daniels, left, and niece Jada Daniels in the living room of the Bronx apartment where Jarrell was arrested in 2012.
Jennifer Cox for YCLJ.

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At approximately 4 a.m. on Dec. 5, 2012, the streets of the Bronx were dark, cold, and quiet. Three neighborhood friends, Jarrell Daniels, Shaun Deleon, and Dominique Boyd, were still asleep.

Jarrell's clothes were neatly laid out next to his bed, as they were every morning. It had been two weeks since Jarrell, then 18, started his job at a local McDonald's. That morning, he had plans to go to school, followed by his 3 p.m. shift. Three hours before his alarm was set to go off, Jarrell was awakened by more than 10 police officers pulling blankets off his body. The officers told him to get

dressed and that he was being taken into custody for questioning.

A confused and sleepy Jarrell complied. The officers then created a path in the hallway from his room to the front door so that his mother, two sisters, and 4-year-old niece were unable to see him walk out of their Melrose neighborhood home.

"When they come like that, you know you're going to jail," Jarrell said.

Outside, six unmarked cars waited with the engines running. Jarrell was then placed in one of the vehicles. He heard an officer radio over to his dispatcher: "We've got one in the sweep."

"As soon as they said that, I knew it wasn't just me," he said.

Jarrell was right.

A few miles away, Shaun Deleon woke up in his mother's Section 8 housing unit on East 216th Street to the sound of the front door being knocked down.

"I remember it like it was yesterday," said Shaun said of his arrest at 4:30 a.m. He was 28 years old.

"When I heard the bang I honestly thought we were being robbed," Shaun remembered. He reached for his phone to call the police before he realized they were already there.

Between 15 and 30 officers—"too many to count," Shaun said—searched the home.

"Kids are really impressionable. What will they think about the law after something like this happens? About the people that are supposed to protect us? What happened to my rights?" Shaun said. "They could have sent me a letter or to court. They didn't need to have guns drawn in a house full of kids."

The officers eventually left with Shaun in handcuffs; a kitchen scale that he said his mother would use to weigh spices, sage, and mint leaves; and an empty "baggy."

Not far from Shaun, on Townsend Avenue, Dominique Boyd, 17, was also startled awake by the police.

"The first thing I saw were guns. Machine guns that had red lights shining from them," Dominique said.

Dominique's father, mother, two brothers, and cousin were home that morning. His mother, Linda, remembers her husband jumping from bed to check on the loud noises that had roused them from sleep.

"I follow him out and see police officers holding him down with their feet," Linda said.

Linda demanded to see a search warrant. She said an officer tried to hit her with the butt of his gun to calm her down. The lights were off, so the Boyd family sat on their living room couch in the darkness. All they could see were the red lights from the officers' guns as they searched their house.

After Dominique was arrested, Linda followed the police to the 44th Precinct police station with a neighbor whose son was also arrested during a raid that morning. The police officer there told them to go home, the precinct was too busy—they could see their sons in court.

A week later, Linda saw Dominique on Rikers Island.

"I still feel like my boy was kidnapped," she said.

Operation Crew Cut

In the months before the December 2012 raids, New York City Police Commissioner Raymond Kelly announced a new NYPD gang policing strategy called Operation Crew Cut that he said would "cut the emerging gangs down at their roots—turning crew members' rising use of social media against them."

Kelly also said he would double the NYPD's gang division to launch a series of investigations that used Facebook, Instagram, and text messages to identify alleged gang members.

Later, on the day of the Bronx raids, New York City special narcotics prosecutor Bridget Brennan announced the arrest and 41-count indictment against 10 people, all Black and Latinx men—including Jarrell, Shaun, and Dominique—on charges including conspiracy to commit murder, assault, weapons possession and drug possesion and sales. Brennan alleged that the men were members of a gang called the Walton Townsend Gang, or WTG, who clashed with rival Bronx gangs including Dub City, which she said operated in the area between East 175th Street and East 177th Street from Walton Avenue to Jerome Avenue. "For too long, this community has been terrorized by gang members whose primary allegiance is to their guns," Brennan said.

"They steal, sell drugs, and take initiation fees from young recruits—all with the goal of buying more guns, which they use with reckless disregard for human life," Brennan continued. "With today's arrest of the gang hierarchy, those who stoked the violence have been taken off the street. "

When contacted by The Appeal, Brennan's office offered information about the charges against Jarrell, Shaun, and Dominique but declined to comment on their arrests or the department's policing tactics.

About one year after the Bronx raids, Kelly issued a press release in which he stated that more than 400 crew members had been indicted and that homicide rates among victims between ages 13 to

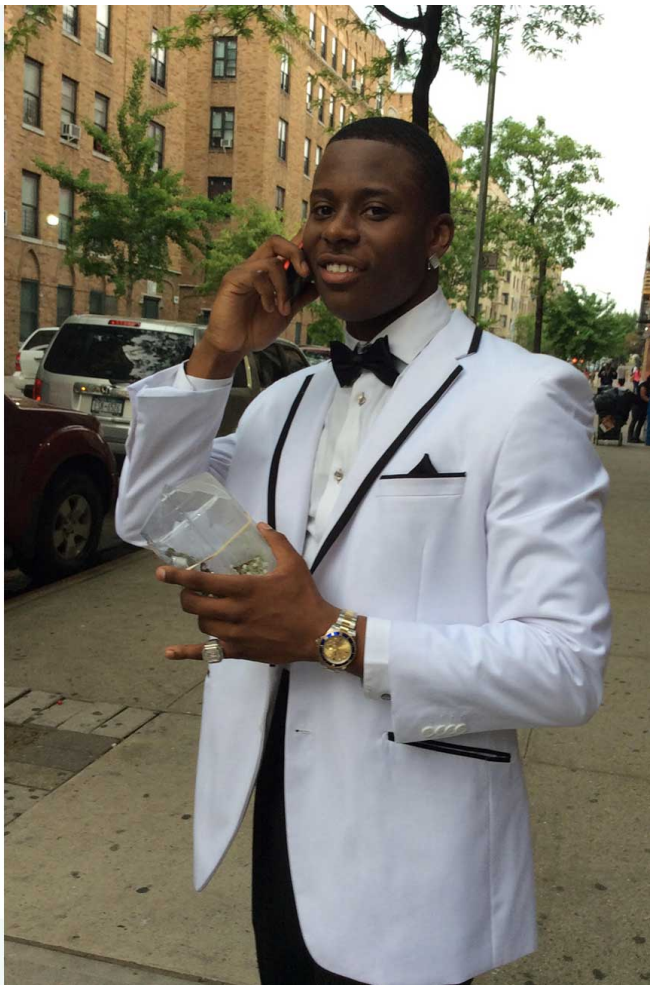
21 had fallen by 50 percent from November 2013 to November 2014.

In a 2014 testimony to the New York City Council Committee on Public Safety, Brennan attributed a 34 percent drop in shootings in the 44th Precinct from 2011 to 2013 to Operation Crew Cut.

Alex Vitale, professor of sociology at Brooklyn College, told The Appeal that homicides in all of New York City are down sharply, making it difficult to determine the accuracy or larger meaning of NYPD's claims about short-term drops over indeterminate periods in very local places.

Similarly, in a 2015 article in the University of Denver Criminal Law Review, Babe Howell, a law professor at the City University of New York, wrote that Operation Crew Cut was launched as shootings and homicides in New York City were at a four-decade low and that gangs were responsible for less than 1 percent of all felonies in the city.

The NYPD anti-gang initiative also came as a class-action lawsuit filed by the Center for Constitutional Rights challenged the department's use of stop-and-frisk. In 2013, a federal judge determined that the NYPD was liable for a pattern and practice of racial profiling and unconstitutional stops. In her law review article, Howell wrote that Operation Crew Cut continued NYPD practices of profile-based policing. The lawsuit challenging stop-and-frisk, she wrote, "threatened to foreclose NYPD's ability to monitor youth of color in the absence of crime based on appearance and geography. ... For the NYPD to relinquish the intensive policing of these suspect populations is unthinkable."



Shaun Deleon with his son Ezra King Deleon; Dominique Boyd at his prom, which he attended when he was out on bail.

Trial and incarceration

On Dec. 5, 2012, Jarrell arrived at the 44th Precinct station to find Shaun and Dominique there, too. The three friends and their seven co-defendants waited in separate cells in the same hallway. An officer asked the young men who would like to be first for questioning. There was silence, and then Jarrell volunteered.

Jarrell was escorted to an interrogation room and left alone with one arm handcuffed to a bar. Over an hour later, two officers entered the room and slid two pieces of paper that listed the charges against him across the table.

"'What do you have to say about that?" Jarrell remembered one officer asking him. "You're looking at a lot of time. We just want to give you the opportunity to help yourself because when your friends get up here, they're going to tell us everything."

Though the charges—which included assault in the first and second degree—were serious, "it looked like they had just typed it," Jarrell remembered. "There was no letterhead or official format, it just looked like they had typed every offense you could possibly charge somebody with on two pieces of paper. They really went for the extreme, the highest measure."

The other nine defendants in the WTG indictment were transferred into one cell to be fingerprinted. An officer recognized Shaun from a year prior, when he received a $20,000 settlement after he sued several NYPD officers for unlawfully detaining him at the precinct. The officer pointed at Shaun in front of the others and told him that he shouldn't be worried, "We just needed to get you off the streets," Shaun said the officer told him.

"They could have got me off the street 100 other different ways," Shaun said.

At 10 p.m., Jarrell, Dominique, and two of their co-defendants were transferred to Rikers Island. Jarrell said that they were not arraigned nor did they see a judge or an attorney. Their ankles were shackled together—"like we were part of a chain gang," Jarrell said—when they filed into the white van to Rikers.

The next morning, Jarrell was allowed to call his mother for the first time. He remembered trying to hide his tears so no one would think he was weak as he begged her to get him out of jail.

Shaun and the other co-defendants over 19 years old, meanwhile, were sent to the Manhattan Detention Complex, known as "The Tombs." Later that week, Shaun met with his attorney for the first time. Afterward, when Shaun returned to the recreational area to

review legal documents in his case, he felt what he thought was a light wind brush across his face. But then he felt warm blood stream down his face. He had been slashed by a fellow prisoner.

Later that afternoon, Shaun was transferred to Rikers.

"Violence is a norm in there," Shaun remembered. "Like someone brushing their teeth in the morning. They [prisoners] turn into monsters because they're treated like monsters."

In January 2014, Shaun's original conspiracy charges were dismissed, but he was re-arrested for the drug paraphernalia (the kitchen scale and empty baggy) found during the raid on his mother's home. He later received a two-year sentence, 10 months of which he spent at the Bare Hill Correctional Facility in Franklin County, near the Canadian border.

Shaun suspects that his prior criminal record rather than these new offenses made him a target.

"They [NYPD] knew getting me would make their case so much stronger and I guess it did in a sense. They painted such a bad picture of me, I didn't even know was possible," Shaun said. "And all they needed was a Facebook message."

The Facebook message was from one of his co-defendants. It read: "Yeah bro, I lost my phone, I got that dub for you." Shaun recalled writing back: "Aight, I'll see you in the morning bro, don't worry about it." Shaun said prosecutors alleged that "dub" was a reference to drugs.

"That message is what tied me to the whole thing. It was my acknowledgement of what he said," Shaun explained.

When Shaun was released from prison on April 15, 2015, he spent his first two nights of freedom in a homeless shelter. His mother was told she would lose her Section 8 housing if she let him return

to her home.

"It wasn't so much that the place was hell, it was that I couldn't be with my family, with the people that had waited for me and supported me this whole time," Shaun said. "It was like, how much more are you all going to take? How much more do I have to pay?"

Jarrell, meanwhile, waited for a resolution in his case at Rikers. New York's restrictive laws on pretrial criminal discovery—which were not overhauled until this year in April —left him in the dark about the evidence against him. Jarrell learned that his Facebook account was being used against him not from discovery handed over by prosecutors, but from a New York Post article published the day after his arrest headlined "Throw 'book at 'em." The piece referred to Jarrell and his co-defendants as "internet dummies" and "gangbangers" and included a photo from his Facebook account in which he posed with one of his co-defendants outside his apartment building.

On Sept. 4, 2013, Jarrell turned 19 on Rikers Island, making him eligible to be transferred to another housing unit at the facility, the George R. Vierno Center, also known as Beacon, which he described as the "gang building." It was the site of a riot which left several people injured days before his birthday. Jarrell said it was his fear of Beacon that led him to enter a guilty plea on August 2013 to assault in the first degree.

So, on Oct. 22, 2013, Jarrell, a first-time felony offender, became prisoner 13A4651 at Bare Hill Correctional Facility.

During the next four years, Jarrell's mother and niece visited once a month. It was during these years that he developed from a teenager to a man.

But years before Jarrell was incarcerated at Rikers, the criminal legal system cast a long shadow on him. During his first week of high school, Jarrell was on the bus home when a fight broke out.

He quickly got off to try to avoid trouble. A few blocks from the bus, however, police surrounded Jarrell, drew their weapons, ordered him to lie on the ground, and arrested him for gang assault and robbery. "Three years later, the charges were dropped. You would think this was great news, but the damage was already done," Jarrell said.

"My self image was being seen through the systems I couldn't escape. I was no longer a son, a brother, or even a student. Quite frankly, I wasn't even a teenager anymore. I was a soldier whose sole purpose was to survive. Thinking about anything beyond that would just cause me pain," Jarrell said.

Dominique was one of two defendants to take his case to trial. After over a year of fighting for his case in and outside of Rikers, he lost.

On July 2, 2013, he was convicted of assault in the first degree, criminal weapon possession in the second degree, and conspiracy in the fourth degree in Manhattan Criminal Court.

"I would have never told my son to go to trial if I thought he might be guilty," his mother, Linda, said. "Now I wonder, did I do the right thing?"

The guilty verdict came after Linda had put up her family home on Gun Hill Road in the Bronx so that Dominique could make his $400,000 bail. But Linda said Dominique's release from Rikers—set for April 2013—was delayed two weeks without explanation. She finally picked him up from the facility late that month.

"Dominique told me they dragged him to the door yelling 'hurry up' because they knew they held him too long," Linda said. "They were in such a rush, they pushed him out of Rikers in other people's clothing. I didn't even recognize my own son standing there in these stranger's clothes."

Dominique lived at home for three months before he was convicted and then sentenced to seven and a half years in prison and five years released supervision. It was his first felony offense.

Since his conviction in 2013, Linda says Dominique has moved from over 10 facilities. She said she has stopped counting.

The new stop-and-frisk?

Operation Crew Cut is nearly seven years old, and gang policing remains pervasive in New York City. From June 2018 to June 2019, according to The Intercept, the NYPD added 2,500 names to its gang database, which is now more than 18,000 individuals, 98 percent of whom are Black or Latinx. Individuals in the database are not notified nor do they have any recourse to challenge the listing. The opaque and broad mechanisms of gang policing have received increasing amounts of attention and backlash from communities, which has led to proposed legislation that would require the NYPD to "notify minors designated as suspected gang members or affiliates in a gang database and provide an opportunity for those minors to contest their designation. The bill would also require the NYPD to report information about the database."

Operation Crew Cut also led to a series of gang raids including a 2016 raid of the Eastchester Gardens public housing project in the Bronx that included 700 NYPD officers, along with SWAT team members, and gang and narcotics detectives. With 120 arrested, it was the largest gang raid in NYPD history.

But, according to Howell's study of the Bronx 120 case, nearly 60 percent of defendants pleaded guilty to selling marijuana or other drug-related offenses. Just 4 percent pleaded guilty to murder. And 50 to 60 defendants were not alleged to be gang members. "There is no requirement that you have to have committed a crime, or even

suspicion of criminality to be entered into the gang database," Howell said at the April event announcing her report. "This is about association, what you look like, what you know, where you are seen, maybe it's at a bodega or in park, regardless, it shouldn't surprise you that it targets young men of color, with no notice, no ability to appeal, and no transparency."

The NYPD, however, continues to defend its gang policing practices. "We are very confident that once someone is identified as a gang member, make no mistake—they are a gang member," Dermot Shea, then the NYPD's chief of crime control strategies, told CityLab in 2017.

But Shaun says that gang policing simply criminalizes young people, often based on their social networks.

"This is about the police wanting to teach street kids a lesson. It doesn't even have to do with crime. It is a vendetta, revenge, a way of getting back. But, you can only punish kids for so long until they're numb to everything. We got to find another way," he said.

Where they are now

Jarrell is now 24 and resides in the same Bronx apartment that the police raided nearly seven years ago. In April 2019, he launched the Justice Ambassadors Youth Council, which pairs young people ages 16 to 24 who have been affected by the criminal legal system with city officials to discuss issues such as racial inequality and trauma, and to develop policy around those issues. He also released a TED talk this year called "What Prosecutors and Incarcerated People Can Learn From Each Other," which has been viewed more than 1.3 million times.

"My story is not unique, it belongs to millions of Black and brown Americans sitting inside prisons today. It is through education that we will arrive at a truth that is inclusive at unites us all in the

pursuit of justice," Jarrell said.

Jarrell is on post-release supervision until 2023.

Shaun lives in New Jersey with his wife of two years and 10-month-old son, "the absolute loves of my life." He is an elevator mechanic and just bought his first car.

"I'm here and finally living my life free. I'm not looking over my shoulder. There's no cop following me, or trying to get information on me. I'm just trying to be the best father I can be," he said.

Dominique is still incarcerated at Bare Hill Correctional Facility. When The Appeal interviewed him on March 30, what was supposed to be a one-hour call was cut 36 minutes short by a guard who told him that he had to get off the phone.

A conditional release date is Sept. 13. After Dominique comes home, he will be on parole for five years. His mother is nervous about his return and doubtful they will release him on time.

Linda said she continues to feel the pain of her son's absence. "It's hard to pretend that you're happy. I've lost a piece to my puzzle."

Dominique, however, is excited for the future. He has a girlfriend to return to and he hopes to mentor young people in the Bronx.

"I want to make sure kids know the stories of what's going on behind the jails so they don't have to end up here," he said.

Dominique celebrated his 24th birthday in May, which fell on Mother's Day this year, with a visit from Linda. She traveled eight hours and waited six for one hour with her son.

Dominique is the youngest of his co-defendants—and he will be the last to be free.

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